

25STCV22283 25STCV22283

County: los-angeles

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Case Number: 25STCV22283 Hearing Date: September 15, 2026 Dept: 224

900 Vermont LLC v. Mohammad Khajavi

TENTATIVE RULING

The hearing on Defendant's motion is CONTINUED to November 6, 2026 at 9:00 a.m.. On or before October 9, 2026, Defendant shall file and serve a proposed responsive pleading in this action. If Defendant timely files and serves the proposed pleading, the court will GRANT the motion, vacate and set aside the judgment under Code of Civil Procedure section 473(b), and deem the proposed pleading filed as of the date of the order.

The Court also sets a Case Management Conference on November 6, 2026 at 9:00 a.m.

ANALYSIS

Introduction

On July 29, 2025, Plaintiff filed the Complaint for Unlawful Detainer in this action.

On September 30, 2025, Default Judgment was entered against Defendant Mohammad Khajavi.

On November 14, 2025, Defendant filed his first Motion to Set Aside/Vacate Judgment.

On June 23, 2026, Defendant filed the instant Amended Motion to Set/Aside Vacate Judgment.

No opposition has been filed.

Legal Standard

Code of Civil Procedure, section 473, subdivision (b) provides for two distinct types of relief—commonly differentiated as “discretionary” and “mandatory”—from certain prior actions or proceedings in the trial court. (Luri v. Greenwald (2003) 107 Cal.App.4th 1119, 1124 (Luri).)

The discretionary portion of section 473, subdivision (b) provides: "The court may, upon terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).)

The mandatory portion of section 473 requires the court to, "whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., § 473, subd. (b).)

Motion to Set Aside Default Judgment

Defendant Mohammad Khajavi moves to vacate the default judgment entered on September 30, 2025. Defendant first moved to set aside the judgment on November 14, 2025, within six months of the judgment. The instant Amended

Motion was filed June 23, 2026. Accordingly, the Court treats Defendant's motion as timely filed.

The substance of Defendant's showing is that although he signed the lease as the named lessee, Taz Dar was the intended and actual occupant, rent payor, and point of contact for Unit 239 from the inception of the tenancy; that Plaintiff's management dealt directly with Mr. Dar on all tenancy and account matters throughout; that Defendant did not reside in the unit or manage its day-to-day affairs; and that, understanding Mr. Dar to be handling the matter, Defendant did not separately respond to the action before default was taken.

Defendant has provided his declaration in support and Defendant acted diligently within a reasonable time.

Section 473(b) requires that a motion for relief be accompanied by the proposed responsive pleading. Defendant's motion does not include one. That omission, standing alone, would preclude relief. Given Defendant's self-represented status, the strong policy favoring merits dispositions, and the otherwise sufficient showing of mistake, the Court CONTINUES the hearing to allow Defendant to cure the defect by filing and serving a proposed responsive pleading.

Conclusion

The hearing on Defendant's motion is CONTINUED to November 6, 2026 at 9:00 a.m.. On or before October 9, 2026, Defendant shall file and serve a proposed responsive pleading in this action. If Defendant timely files and serves the proposed pleading, the court will GRANT the motion, vacate and set aside the judgment under Code of Civil Procedure section 473(b), and deem the proposed pleading filed as of the date of the order.

The Court also sets a Case Management Conference on November 6, 2026 at 9:00 a.m.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.